

304-312 High Street

in the London Borough of Newham (London Legacy Development Corporation)

planning application no. 19/00291/FUL

Strategic planning application stage II referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Demolition of existing buildings and construction of a part seven part 19/22-storey mixed-use building (maximum height 81.65 metres) to provide a 287-room hotel (Class C1) and 782.56 sq.m. office and co-working floorspace (flexible Class B1a/c) and ancillary landscaping and associated plant.

The applicant

The applicant is **The Collective** and the architect is **PLP Architecture**

Key dates

Preapplication meeting: 12 June 2019

Stage I Report: 16 September 2019

Committee Meeting: 18 December 2019

Strategic issues summary

Principle of development: The proposed hotel and co-working office space in this accessible, edge of town centre location within the Lower Lea Valley Opportunity Area is supported in strategic planning terms. The maximum period of stay for hotel guests has been secured within the section 106 heads of terms (paragraph 9).

Urban design: Conditions and section 106 obligations have been secured regarding detailed design, materials, public realm management and landscape works to the Channelsea River (paragraphs 10-12).

Transport: Transport issues resolved; a £400,000 contribution has been secured via section 106 towards station improvement works at Stratford Regional Station (paragraphs 18 & 19).

Outstanding **energy** and **sustainable development** issues have been addressed (paragraphs 14-17).

The Corporation's decision

In this instance, the London Legacy Development Corporation has resolved to grant permission, subject to conditions.

Recommendation

That the Corporation be advised that the Mayor is content for it to determine the case itself, subject to any action that the Secretary of State may take and does not therefore wish to direct refusal..

Context

1 On 13 April 2019, the Mayor of London received documents from the London Legacy Development Corporation notifying him of a planning application of potential strategic importance to develop the above site for the above uses. This was referred to the Mayor under Categories 1B & 1C of the Schedule to the 2008 Order:

- *1B(c) – Development (other than development which only comprises the provision of houses, flats or houses and flats) which comprises or includes the erection of a building or buildings outside of Central London and with a total floorspace of more than 15,000 square metres.”*
- *1C(c) “Development which comprises or includes the erection of a building that is more than 30 metres high outside the City of London.”*

2 On 16 September 2019, the Mayor considered planning report D&P/4316a/01, and subsequently advised the Corporation that the application did not yet comply with the London Plan, for the reasons set out in paragraph 60 of the above-mentioned report (attached); but that the possible remedies set out in that paragraph could address these deficiencies.

3 A copy of the above-mentioned report is attached. The essentials of the case with regard to the proposal, the site, case history, strategic planning issues and relevant policies and guidance are as set out therein, unless otherwise stated in this report. Since then, further information has been provided in response to the Mayor’s concerns and the application has been amended (see below).

4 On 18 December 2019, the Corporation decided that it was minded to grant permission, subject to conditions and a section 106 agreement, and on 20 January 2020 it advised the Mayor of this decision. Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008, the Mayor may allow the draft decision to proceed unchanged, direct the Corporation under Article 6 to refuse the application. The Mayor has until 3 February 2020 to notify the Council of his decision and to issue any direction.

Consultation stage issues summary

5 At consultation stage, the Corporation was advised that while the application was supported in principle, it did not yet comply with the London Plan for the reasons set out below;

- **Land use principles:** the proposed hotel and co-working office space in this accessible, edge of town centre location within the Lower Lea Valley Opportunity Area is supported in strategic planning terms. The maximum period of stay for hotel guests must be secured within a S106 agreement.

- **Urban design and heritage:** The contributions towards public realm and pedestrian permeability are welcomed. The proposed heights are supported subject to robust conditions securing high-quality materials. Whilst there would be some harm to existing heritage assets, GLA officers consider this harm to be less than substantial and outweighed by both the heritage benefits and the wider public benefits arising from the proposals.
- **Inclusive design:** In line with London Plan Policy 4.5 and draft London Plan Policy E10, 10% of the hotel rooms and all communal areas must be fully wheelchair accessible. This should be secured by condition.
- **Transport:** Further information is required on servicing trips, impact on Stratford Station, taxi drop-off and Road Safety Audit for the main proposed vehicle access as well as the relocation of visitor cycle parking.
- **Sustainable development:** Further information is required regarding energy efficiency measures, carbon savings, cooling and overheating, renewable technologies, flood risk management and sustainable drainage, and urban greening.

6 The decision on this case, and the reasons will be made available on the GLA's website www.london.gov.uk.

Strategic planning policy and guidance update

- 7 The following draft policy and guidance are now material considerations:
- The National Planning Policy Framework February 2019 and National Planning Practice Guidance.
 - The Report of the Examination in Public of the draft London Plan was published in October 2019 and,
 - The Intend to Publish London Plan (December 2019). This should be taken into account on the basis described in the NPPF.

Application update

8 Since consultation stage, GLA officers have engaged in discussions with the applicant, the Corporation and TfL officers with a view to addressing the above matters. Furthermore, as part of the Corporation's draft decision on the case, various planning conditions and section 106 obligations have been proposed to address the above concerns and ensure that the development is acceptable in planning terms.

Principle of development

9 At consultation stage, the proposed redevelopment of the site to provide 287-bedroom hotel, office and co-working space, was supported in principle. In line with Stage 1 comments, a Hotel Management Strategy has been secured via the section 106 agreement. This strategy must ensure that the proposed development is used solely as a hotel under Class C1 (and not for residential use under Class C3) and restricts length of stay to no longer than 90 days within a 12-month period. These controls are acceptable.

Urban design

10 At consultation stage, further information was requested regarding the management of the riverside garden, including how this area would be secured out of hours to ensure pedestrian safety and avoid any risk of anti-social behaviour. In response to these comments, a Public Realm Management Strategy has been secured via the section 106 agreement, to include measures relating to public accessibility, management, access arrangements and out of hours emergency. The delivery and layout of the Channelsea River landscape works and public access through the site to this area have also been secured within the section 106.

11 Conditions relating to detailed design and materials have been secured to ensure an exemplary design is delivered. A section 106 obligation also requires the retention of the scheme architects, or an equally qualified architect as agreed in writing by the LLDC.

12 In line with Policy D12 of the Mayor's Intend to Publish London Plan, condition 48 requires the submission of a further Fire Strategy for approval.

Inclusive design

13 10% of hotel rooms have been secured as wheelchair accessible, in line with London Plan Policy 4.5 and draft London Plan Policy E10.

Energy

14 Since Stage 1, the applicant has engaged with the GLA's energy team to resolve the outstanding issues. Additional information has been provided regarding cooling and heating, the proposed energy centre and heat pumps. Further details of PV panels have been secured by condition to ensure their provision is maximised. The section 106 agreement includes a commitment to future-proof the development to allow connection to a district heat network, the use of reasonable endeavours to connect to the QEOP District Heat network, and an updated energy strategy and carbon offset payment, if required.

15 Based on the revised energy assessment submitted, the proposal would achieve a 36% reduction in regulated carbon dioxide emissions and therefore exceeds the targets within London Plan Policy 5.2 and Policy S13 of the intend to publish London Plan.

Sustainable development

16 In response to consultation comments, additional information has been provided relating to surface water drainage, storage and SuDs measures. Runoff rates into the Channelsea River are accepted and the applicant has demonstrated that, in context of the site constraints, the use of SuDs measures to reduce runoff and maximise additional attenuation storage have been maximised. Notwithstanding this, conditions requiring the submission of a Surface Water Strategy, Foul Drainage and Drainage Strategy have been secured.

17 The applicant has provided a calculation of the proposal's Urban Greening Factor (UGF) in line with Policy G5 of the Mayor's Intend to Publish London Plan. Whilst the proposals UGF of 0.25 falls short of the 0.3 target set within Policy G5, GLA officers are satisfied that the conditions relating to green roofs, landscaping, planting and treatment of site boundaries would ensure that greening is maximised across the site.

Transport

18 At consultation stage, transport issues were raised regarding servicing trips, impacts on Stratford Regional Station, the location of the taxi drop-off and visitor cycle parking. Following discussions with TfL and the submission of further information, including a Road Safety Audit, these matters have been resolved. A financial contribution of £400,000 has been secured via the section 106 agreement towards station improvement works at Stratford Regional Station to mitigate the impact of additional trips. This includes a capped amount to be used towards studies which support the delivery of mitigation options at Stratford Regional Station. There is also a financial contribution of £250,000 towards public realm enhancements and a section 278 agreement with Newham Council for highway works on Stratford High Street.

19 The Transport issues raised at Stage 1 have been adequately addressed and the development is in accordance with the transport policies of the London Plan and intend to publish London Plan.

Response to consultation

Responses to the Corporation

20 In addition to inviting comments from statutory consultees and publishing all the relevant documents on the Corporation's planning register, the Corporation carried out public consultation with local residents, businesses and institutions. The Corporation publicised the application by notifying 583 neighbouring properties, placing site notices and publishing notices in the local press. A total of 8 responses were received, including 2 objections and 6 letters of support. Reasons for support included investment into local business and industry and job creation in the hospitality sector. Reasons for objection include height, scale, overdevelopment, lack of green space, impact on air quality and the additional pressure which would result to local services and transport infrastructure.

21 The following statutory consultees and local amenity groups have responded to the consultation as follows:

- **Environment Agency:** Object to this application and recommend that planning permission is refused on the grounds that inadequate assessment of tidal breach data has been carried out. The site is located within the EA's modelled tidal breach flood extent. The EA require an assessment of the most up to date breach data to be included within the FRA to ensure there is appropriate consideration of the residual flood risk. The submitted FRA has failed to demonstrate how the proposed development and the site users will be kept safe for the lifetime of the development as there is an inadequate

assessment of the risk of tidal flooding, which includes the risk of a breach in the Thames tidal flood defences.

An updated FRA was submitted in response to these comments and the initial objection has been removed.

- **Thames Water:** No objection subject to a condition relating to water network upgrades - condition 25.
- **Cadent:** No objection subject to no impact on infrastructure - informatives attached.
- **Historic England:** no comment, the application should be determined in accordance with national and local policy guidance.
- **Historic England (GLAAS):** Recommended planning conditions requiring a written scheme of investigation and recording and historic analysis data to be submitted for approval – conditions 6 & 7.
- **Natural England:** no comment.
- **Network rail:** no observations.
- **National Grid:** the developer should contact National Grid regarding apparatus in the vicinity of the site – informative attached.
- **London City Airport:** no objections subject to a condition regarding the maximum operating height of cranes and the submission of a bird strike risk statement and bird management plan – condition 9.

22 Issues raised by objectors have been considered in this report, the Mayor's Stage I report, and the Corporation's committee report of 18 December 2019. The Corporation has proposed various planning conditions and obligations in response. Having had regard to these, GLA officers are satisfied that the statutory and non-statutory responses to the public consultation process do not raise any material planning issues of strategic importance that have not already been considered in this report, or consultation stage report D&P/4316a/01.

Draft Section 106 agreement

23 The draft section 106 agreement includes the following provisions:

- Public Realm Management Strategy;
- Hotel Management Strategy;
- Car Parking Management Strategy;
- Landscape works to the Channelsea River;
- £250,000 contribution towards improved public realm, local connectivity, walking and cycling provision and wayfinding;
- £20,000 contribution towards the administration of the LLDC Construction Transport Management Group;
- £50,000 contribution towards construction mitigation impacts;
- £400,000 contribution towards the mitigation of additional trips at Stratford Regional Station;

- S278 agreement and traffic management order;
- Employment skills and training;
- 358 sq.m. of affordable workspace charged at 50% of market rent for a period of 25 years; and,
- Architect retention and £100,000 design monitoring contribution.

Legal considerations

24 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor has the power under Article 6 to direct the LLDC to refuse permission for a planning application referred to him under Article 4 of the Order. The Mayor may also leave the decision to the local authority. In directing refusal, the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice.

Financial considerations

25 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. National Planning Practice Guidance emphasises that parties usually pay their own expenses arising from an appeal.

26 Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy.

Conclusion

27 The strategic issues raised at consultation stage regarding design, landscaping, energy, sustainable development and transport, have been appropriately addressed, and conditions and planning obligations secured, and as such, the application complies with the London Plan and the intend to publish London Plan and there are no sound reasons for the Mayor to intervene in this particular case.

for further information, contact the GLA Planning Team:

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